

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel DiRocco	Team: Team # 3	CCRB Case #: 201012451	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/10/2010 7:00 PM	Location of Incident: § 87(2)(b)	Precinct: 43	18 Mo. SOL 3/10/2012	EO SOL 3/10/2012	
Date/Time CV Reported Fri, 09/10/2010 8:18 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 09/10/2010 8:18 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Thomas Alps	00000	926498	043 PCT
2. POF Xiomara Gibson	27693	945426	043 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Maguire	27294	945943	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Thomas Alps	Abuse: Lt. Thomas Alps supervised the stop of § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POF Xiomara Gibson	Abuse: PO Xiomara Gibson frisked § 87(2)(b)	§ 87(2)(b)
C.POF Xiomara Gibson	Abuse: PO Xiomara Gibson searched § 87(2)(b)	§ 87(2)(b)
D.POF Xiomara Gibson	Abuse: PO Xiomara Gibson searched § 87(2)(b)	§ 87(2)(b)
E.LT Thomas Alps	Abuse: Lt. Thomas Alps supervised the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint on September 10, 2010 with the CCRB via its website. § 87(2)(b) stated that on September 10, 2010, at approximately 7:00 p.m., in the vicinity of § 87(2)(b) in the Bronx, he and § 87(2)(b) were stopped by three officers, including Lt. Thomas Alps, PO Sean Maguire, and PO Xiomara Gibson of the 43rd Precinct. The following allegations resulted:

Allegation A – Abuse of Authority: Lt. Thomas Alps supervised the stop of § 87(2)(b) and § 87(2)(b) § 87(2)(g)

Allegation B– Abuse of Authority: Officer Xiomara Gibson frisked § 87(2)(b) § 87(2)(g)

Allegation C – Abuse of Authority: Officer Xiomara Gibson searched § 87(2)(b) § 87(2)(g)

Allegation D – Abuse of Authority: Officer Xiomara Gibson searched § 87(2)(b) § 87(2)(g)

Allegation E – Abuse of Authority: Lt. Thomas Alps supervised the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) is a black male with black hair and black eyes § 87(2)(b). He was § 87(2)(b) at the time of the incident.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on September 27, 2010 (Encl. 6a-d). On September 10, 2010, at approximately 7:00 pm, in the vicinity of § 87(2)(b) in the Bronx, § 87(2)(b) met with § 87(2)(b) who had driven up to the sidewalk after § 87(2)(b) tried finding him at his home a block away. § 87(2)(b) entered § 87(2)(b)'s sedan, which was parked in front of a barbershop and convenience store. They gave each other a handshake and approximately a minute later, an unidentified black civilian male whom § 87(2)(b) did not know

who was in his forties, with salt and pepper hair and a thin build, approached their vehicle and asked § 87(2)(b) if he wanted a haircut for twelve dollars. § 87(2)(b) told him that he would think about the offer and tell him his answer later.

The male who offered the haircut left and soon after, another black male only known to § 87(2)(b) as “§ 87(2)(b)” approached near § 87(2)(b)’s vehicle. § 87(2)(b) asked § 87(2)(b) if he knew if the man who had approached them earlier cut hair well. § 87(2)(b) said that since he was bald, he would not know about such things. § 87(2)(b) and § 87(2)(b) exchanged a handshake through the passenger window of § 87(2)(b)’s vehicle and § 87(2)(b) left to go inside the convenience store.

Three officers then approached in an unmarked black Impala, parking to the rear of § 87(2)(b)’s car. The officers got out of their vehicle. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) The officers’ names were all visible on their nameplates.

PO Gibson approached the passenger’s side of the vehicle and PO Maguire and Lt. Alps approached § 87(2)(b)’s window. PO Gibson told § 87(2)(b) to put his hands on the dashboard. When § 87(2)(b) asked why he had to do this, PO Gibson told him to remain quiet. The only thing that Lt. Alps and PO Maguire said to § 87(2)(b) at the time that § 87(2)(b) could hear was that they could “charge § 87(2)(b) with a DUI.” § 87(2)(b) was commanded to get out of the vehicle, with which he complied. PO Maguire and Lt. Alps then grabbed § 87(2)(b) and positioned him in a manner that looked as if he was getting searched, but § 87(2)(b) could not confirm whether or not a search actually took place of § 87(2)(b). However, § 87(2)(b) noted that § 87(2)(b) was frisked.

§ 87(2)(b) asked again why the officers had stopped them. PO Gibson told him to keep his hands on the dashboard and also said, “shut up” and “you’ll know in a minute.” Then, PO Gibson told § 87(2)(b) to get out of the vehicle, helping him out of the car, and then put him in handcuffs. She took § 87(2)(b)’s wallet out of his pocket. Then, PO Gibson put § 87(2)(b) in the back of the officers’ vehicle. While § 87(2)(b) remained in the back of the officers’ car and § 87(2)(b) stood outside, PO Maguire searched § 87(2)(b)’s car, including the glove compartment and the trunk. Each time he searched a new area of the car, PO Maguire returned to Lt. Alps to note what he saw, including a piece of plastic, which Lt. Alps dismissed as of no interest.

§ 87(2)(b) was then pulled out of the officers’ vehicle by one of the officers, who then removed his handcuffs. § 87(2)(b) was given a summons § 87(2)(a) 160.50 by PO Gibson, who also gave him his identification with it. § 87(2)(b) asked the officers what precinct they were from, and in response they told him they were from the 45th Precinct, however, the ticket said they were either from the 43rd Precinct or that the precinct of occurrence was the 43rd, but § 87(2)(b) could not recall which. Lt. Alps then explained that the handshake between § 87(2)(b) and § 87(2)(b) resembled a drug transaction. The officers then left in their vehicle.

Victim: § 87(2)(b)

- § 87(2)(b) is a black male with black hair and brown eyes § 87(2)(b). He was § 87(2)(b) at the time of the incident.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on September 27, 2010 (Encl. 7a-d). On September 10, 2010, at approximately 7:00 p.m., in the vicinity of § 87(2)(b) in the Bronx, § 87(2)(b) drove to meet § 87(2)(b) on the corner. He parked his

vehicle in front of a convenience store and barber shop and § 87(2)(b) went inside the car. A civilian male only known to § 87(2)(b) as “§ 87(2)(b)” came from behind the back of the building where § 87(2)(b) lived, which was in the vicinity and greeted § 87(2)(b). They shook hands through the passenger window and § 87(2)(b) asked § 87(2)(b) if a man standing in front of the barber shop was good at cutting hair. § 87(2)(b) said that he was not skilled at cutting hair and then § 87(2)(b) went to the convenience store.

Then, an unmarked black Impala pulled up behind § 87(2)(b)'s vehicle. Three officers identified via the investigation to be PO Maguire, PO Gibson, and Lt. Alps approached the men. Lt. Alps spoke to § 87(2)(b) initially and asked him for his license and registration. He also noted to § 87(2)(b) that his car smelled like marijuana, asking him if he and § 87(2)(b) had been smoking. § 87(2)(b) stated that they had not been smoking in the car.

At the officers' command, § 87(2)(b) and § 87(2)(b) exited the vehicle. PO Gibson patted down § 87(2)(b) and then searched his pants pockets. He did not remember if § 87(2)(b) was searched by PO Maguire or PO Gibson but he was searched. Lt. Alps did not make physical contact with either § 87(2)(b) or § 87(2)(b). While PO Gibson searched § 87(2)(b), PO Maguire searched the front and back of § 87(2)(b)'s vehicle, as well as under the seats and in the glove compartment. Lt. Alps said they could charge § 87(2)(b) with a DUI. After § 87(2)(b) was searched, he was placed in the officers' car. Additionally, PO Maguire said § 87(2)(b) was “acting like an asshole” for objecting to the encounter.

§ 87(2)(b) stated that Lt. Alps wrote § 87(2)(b) a summons and one of the officers handed the summons to § 87(2)(b) after his handcuffs were removed. Lt. Alps then told the two men to get off the corner. The officers got into their vehicle and drove away.

NYPD Statements:

Subject Officer: LT. THOMAS ALPS

- *Lt. Alps is a white male with brown hair and brown eyes who is 6'2" tall and weighs 190 pounds. He was § 87(2)(b) years old at the time of the incident.*
- *On September 10, 2010, Lt. Alps was assigned to the 43rd Precinct, working a uniformed tour from 11:00 a.m. to 7:45 p.m. as the impact lieutenant with PO Gibson and PO Maguire in an unmarked vehicle § 87(2)(e), § 87(2)(f)*

Memo Book

On September 10, 2010, Lt. Alps wrote in his memo book that at 6:45 p.m., § 87(2)(b) was served a summons § 87(2)(a) 160.50 by PO Gibson at the corner § 87(2)(b) in the Bronx, and that a stop, question, and frisk report was prepared by PO Gibson regarding suspected drug sales and criminal possession of a weapon (Encl. 10a-b).

CCRB Testimony

Lt. Alps was interviewed at the CCRB on October 28, 2010 (Encl. 11a-b). On September 10, 2010, at approximately 6:45 p.m., in the vicinity of § 87(2)(b) in the Bronx, Lt. Alps, PO Gibson, and PO Maguire were driving southbound on § 87(2)(b) and saw an unidentified male leaning into a gold Lexus' front passenger window, appearing to pass through what looked like United States currency to the man in the front passenger seat, § 87(2)(b). As the officers' vehicle made a u-turn, the individual walked away toward a bodega on the block, at which point, PO Maguire and PO Gibson exited their

vehicle to approach the unidentified male at the bodega while Lt. Alps walked toward the Lexus, which smelled like marijuana.

§ 87(2)(b) immediately exited the vehicle and began to walk away but Lt. Alps halted him verbally. The driver, § 87(2)(b) gave his license to Lt. Alps but it was suspended. § 87(2)(b) exited the Lexus at Lt. Alps' request. Lt. Alps told § 87(2)(b) that his car smelled like marijuana, to which § 87(2)(b) replied that he and § 87(2)(b) had just finished smoking it. § 87(2)(b) then gave consent to Lt. Alps to search him and his vehicle. Lt. Alps searched, but did not frisk § 87(2)(b) and when the officers went to search the vehicle, § 87(2)(b) began cursing at them, calling Lt. Alps a "nigger." Lt. Alps told § 87(2)(b) to relax because people began filing out of the bodega to watch the scene. § 87(2)(b) refused to calm down while they were searching the car, therefore he placed him in handcuffs and locked in the back of the police vehicle, after being searched and frisked for contraband and weapons. Nothing was found in § 87(2)(b)'s Lexus after they searched underneath the front seats and other areas of the car interior that Lt. Alps could not recall. Lt. Alps told § 87(2)(b) to park elsewhere and § 87(2)(b) apologized for the inconvenience.

Lt. Alps then went to the police vehicle and spoke to § 87(2)(b) who apologized to Lt. Alps when he explained that § 87(2)(b) was acting irrationally. § 87(2)(b) pleaded with Lt. Alps not to arrest him, claiming that he only acted in such a volatile fashion because people were watching him on the street. Lt. Alps gave him a summons written by PO Gibson § 87(2)(a) 160.50, causing § 87(2)(b) to once again become irate. He was brought out of the vehicle and taken out of the handcuffs by Lt. Alps. § 87(2)(b) asked for Lt. Alps' name and shield number. Lt. Alps provided his name but said that he did not have a shield number, which § 87(2)(b) did not believe even though Lt. Alps, as a lieutenant, did not have a shield number to give him. § 87(2)(b) then asked for PO Gibson and PO Maguire's names and shield numbers. The officers then left the scene. Lt. Alps stated that § 87(2)(b) would have been arrested if he had not been given a summons instead. Additionally, a stop, question, and frisk report was prepared for someone on the scene, but he was not sure who it was, surmising that it may have been the male who was approached at the bodega by PO Maguire and PO Gibson. A warrant check was also run for both § 87(2)(b) and § 87(2)(b).

Subject Officer: PO XIOMARA GIBSON

- *PO Gibson is a Hispanic female with black hair and brown eyes who is 5'6" tall and weighs 165 pounds. She was § 87(2)(b) years old at the time of the incident.*
- *On September 10, 2010, PO Gibson was assigned to the 43rd Precinct, working a uniformed tour from 5:30 p.m. to 2:05 a.m. on September 11, 2010 with Lt. Alps and PO Maguire in an unmarked vehicle as the lieutenant's operator.*

Memo Book

On September 10, 2010, PO Gibson wrote in her memo book at 6:50 p.m. that one male was stopped at the corner of § 87(2)(b) and that at 6:55 p.m., a summons was issued (Encl. 12a-b).

CCRB Testimony

PO Gibson was interviewed at the CCRB on December 30, 2010 (Encl. 13a-b). PO Gibson had no recollection of the incident except for the fact that there was a car stop and that she issued a summons § 87(2)(a) 160.50.

Witness Officer: PO SEAN MAGUIRE

- *PO Maguire is a white male with brown hair and hazel eyes who is 6'2" tall and weighs 210 pounds. He was § 87(2)(b) years old at the time of the incident.*
- *On September 10, 2010, PO Maguire was assigned to the 43rd Precinct, working a uniformed tour from 1:00 p.m. to 9:35 p.m. with Lt. Alps and PO Gibson in an unmarked vehicle, assigned to impact.*

Memo Book

On September 10, 2010, PO Maguire wrote in his memo book at 6:50 p.m. that an individual was stopped and a summons was issued by PO Gibson (Encl.8a-b).

CCRB Testimony

PO Maguire was interviewed at the CCRB on October 28, 2010 (Encl.9a-b). On September 10, 2010, at approximately 6:50 p.m., in the vicinity of § 87(2)(b) in the Bronx, PO Maguire was on routine patrol with Lt. Alps and PO Gibson and saw what appeared to be a drug transaction at a window of a car that was parked at a hydrant while the engine was running. An unidentified male exchanged a small object with the car's front passenger, § 87(2)(b). In retrospect, PO Maguire assumed that it was the end of a marijuana cigarette, but at the time, he and the other officers thought it might have been newly purchased drugs.

The unidentified male walked to a bodega upon seeing the officers, where he was followed by PO Maguire while Lt. Alps and PO Gibson approached the car. PO Maguire asked the unidentified male to step out of the store and then asked him outside whether he had been smoking marijuana, due to him smelling of it. The unidentified male said that he had just finished smoking marijuana, so PO Maguire let him go.

PO Maguire joined PO Gibson at the passenger's window of the car, while Lt. Alps stood at the driver's window. The interior of the car smelled like marijuana. § 87(2)(b) admitted that he was an unlicensed driver and said that they had just finished smoking marijuana. § 87(2)(b) also stated that he would be willing to let the officers search his car to prove that he had no contraband inside. Both men were asked to step out of the vehicle and stand behind the car, which they did, and were then frisked, though PO Maguire did not indicate by whom. All three officers took part in a search of the vehicle, examining the interior of the car, including beneath the seats, the door pockets, and cup holders, but not the glove compartment. § 87(2)(b) became irate, calling the officers "motherfuckers" and "niggers" and attempting to approach them from behind the vehicle. § 87(2)(b) was handcuffed and placed in the back of the officers' vehicle and then both § 87(2)(b) and § 87(2)(b) were let go, with § 87(2)(b) being issued a § 87(2)(a) 160.50 summons by PO Gibson. Neither man was searched. § 87(2)(b) was not given a summons out of leniency by PO Maguire.

NYPD Documents

Stop, Question, and Frisk Log

The 43rd Precinct's stop, question, and frisk logs, both online and handwritten, for September 10, 2010, indicate that no stop, question, and frisk report was prepared by PO Gibson, PO Maguire, or Lt. Alps on the date of the incident. In addition, there were no notations of a stop,

question, and frisk report prepared for any encounter at the location of the incident (Encl. 14a-c, 15a-c).

Other Evidence

Canvass

On February 18, 2011, a canvass was done in the vicinity of the incident, however the convenience store was not in view of where the car was searched therefore no one working there could see it. Additionally, no one at the barbershop saw the incident took place and the employees present did not work there at the time as the store was under different management and staffed by different barbers (Encl. 16).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings

§ 87(2)(b) [REDACTED] has not filed a Notice of Claim with the City of New York as of September 15, 2011 with regard to the incident.

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
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§ 87(2)(g)

Allegation B – Abuse of Authority: Officer Xiomara Gibson frisked § 87(2)(b)

§ 87(2)(g)

Allegation C – Abuse of Authority: Officer Xiomara Gibson searched § 87(2)(b)

§ 87(2)(b) alleged that he was searched by PO Gibson. PO Maguire and Lt. Alps stated that § 87(2)(b) was searched for safety reasons prior to being placed into the officers' vehicle. PO Gibson could not attest to whether a search occurred. § 87(2)(g)

Allegation D – Abuse of Authority: PO Xiomara Gibson searched § 87(2)(b)

§ 87(2)(b) alleged that PO Gibson searched him § 87(2)(g). § 87(2)(b) could not definitively declare whether an officer searched § 87(2)(b). PO Gibson could not recall the details of this incident. Lt. Alps, however, stated that he searched § 87(2)(b) noting that § 87(2)(b) consented to this search, after Lt. Alps noted that his vehicle smelled like marijuana. § 87(2)(b) § 87(2)(g) denied that he told Lt. Alps that he had been smoking marijuana or that he consented to the search.

In the case of People v. Gonzalez and Gonzalez, 39 N.Y.2d 122; 347 N.E.2d 575; 383 N.Y.S.2d 215 (1976) (encl. BB1-8), in regards to consent to a search the Court stated, "Consent to a search, a relinquishment of constitutional protection under both the Federal and the State Constitutions against unjustified official intrusion, must be a free and unconstrained choice. Official coercion, even if deviously subtle, nullifies apparent consent."

§ 87(2)(g)

§ 87(2)(g)

Allegation E – Abuse of Authority: Lt. Thomas Alps supervised the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Both the officers and the civilians confirm that the officers searched § 87(2)(b)'s vehicle. Lt. Alps justified the search saying that § 87(2)(b) consented. § 87(2)(b) denied this.

§ 87(2)(g)

According to People v. Figueroa, 6 A.D.3d 720; 776 N.Y.S.2d 574 (2004) (encl. AA1-2), when an officer “leaned into the vehicle to commence an inventory search, he detected the odor of marijuana. He then had probable cause to believe the vehicle might contain drugs, justifying a search of the vehicle and its contents (see People v. Blasich, 73 N.Y.2d 673, [**576] 541 N.E.2d 40, 543 N.Y.S.2d 40 [1989]).”

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date